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IN THE FOURTH JUDICIAL DISTRICT COURT
UTAH COUNTY, STATE OF UTAH

STATE OF UTAH,
Plaintiff,

v.

TYLER JAMES ROBINSON,
Defendant.

**OPPOSITION TO DEFENDANT’S
MOTION IN LIMINE TO
PRECLUDE THE UTILIZATION OF
ARTICLE I, § 12 OF THE UTAH
CONSTITUTION AND RULE 1102
OF THE UTAH RULES OF
EVIDENCE TO SANCTION THE
ADMISSIBILITY OF HEARSAY
EVIDENCE TO ESTABLISH
PROBABLE CAUSE AT THE
PRELIMINARY HEARING**

Case No. 251403576

Judge Tony F. Graf, Jr.

The State hereby opposes Defendant’s Motion In Limine to Preclude the Utilization of Article I, § 12 of the Utah Constitution and Rule 1102 of the Utah Rules of Evidence to Sanction the Admissibility of Hearsay Evidence to Establish Probable Cause at the Preliminary Hearing.

INTRODUCTION

Utah has allowed prosecutors to introduce reliable hearsay at preliminary hearings for more than thirty years. Federal prosecutors have introduced hearsay at preliminary hearings for over fifty years, and at grand jury proceedings since our nation's founding. Forty-four other states allow hearsay at preliminary hearings and grand jury proceedings. These well-established procedures are not unconstitutional.

Indeed, *State v. Timmerman* makes clear that the Federal Confrontation Clause does not apply to preliminary hearings. Because the Confrontation Clause does not apply, defendants have no right to cross-examine hearsay declarants.

Defendant cites no authority that would allow him to use other constitutional provisions to indirectly create a confrontation right that the Confrontation Clause would provide if it applied. His attempt to do so violates well-established rules of constitutional construction because it would create contradictory and superfluous constitutional provisions. In fact, federal courts also recognize that a party cannot rely on the Due Process Clause as the source of a right that another constitutional provision directly provides. That same logic applies to Defendant's attempt to rely on additional provisions besides the Due Process Clause.

Even if Defendant could rely on some other constitutional provision to establish a confrontation right, he has not shown that any of those provisions should apply here. It is illogical to conclude that “the substitute for the grand jury indictment”—a preliminary hearing—“must contain greater procedural protections than the grand jury procedures themselves.” *Peterson v. California*, 604 F.3d 1166, 1171 (9th Cir. 2010).

ARGUMENT

I. Controlling authority establishes that hearsay is admissible at a preliminary hearing because the Federal Confrontation Clause does not apply. If it did, then similar pretrial procedures in the federal system and 45 states would be unconstitutional.

A. *State v. Timmerman* establishes that the Confrontation Clause does not bar the admission of hearsay at a preliminary hearing.

Defendant reluctantly recognizes that *State v. Timmerman*, 2009 UT 58, ¶¶ 11-13, 218 P.3d 590, forecloses his claim that the Federal Confrontation Clause applies at preliminary hearings. *See* Mot. at 23. *Timmerman* is binding on this Court. Because the Confrontation Clause does not apply at a preliminary hearing, the State can introduce reliable hearsay at that hearing, as the Utah Constitution and evidence rules have expressly allowed for over thirty years. *See* Utah Const. art. I, § 12; Utah R. Evid. 1101(d); 1102.

The Confrontation Clause grants a defendant the right to confront through cross-examination “the witnesses against him.” U.S. Const. amend. VI; *see also Crawford v. Washington*, 541 U.S. 36, 50-56. The witnesses against a defendant are those who “bear testimony” against him by providing statements “made for the purpose of establishing or proving some fact.” *Crawford*, 541 U.S. at 51 (quoting 2 N. Webster, *An American Dictionary of the English Language* (1828)).

When the Confrontation Clause applies, it prevents the prosecution from relying on such testimonial statements unless a defendant had a prior opportunity to cross-examine the witness who made them. *See id.* at 61-62, 68-69. So, if the Confrontation Clause does not apply at a particular hearing, then the prosecution may rely on hearsay statements that a defendant has not had the opportunity to cross-examine. *See id.*

The Utah Supreme Court recognized this result in *Timmerman*. See 2009 UT 58, ¶¶ 11-13. Several other federal and state courts agree. See *id.* at ¶ 13 n.2 (collecting opinions from twelve other states that, as of 2009, had held that hearsay was admissible at a preliminary hearing); see also *Peterson v. California*, 604 F.3d 1166, 1170 (9th Cir. 2010) (“[T]he admission of hearsay statements at a preliminary hearing does not violate the Confrontation Clause.”); *Whitman v. Superior Court*, 820 P.2d 262, 269-73 (Cal. 1991) (holding Federal Confrontation Clause did not prevent admission of hearsay at preliminary hearing); *State v. O’Brien*, 850 N.W. 2d 8, 16-18 (Wis. 2014) (same).

As *Timmerman* correctly noted, United States Supreme Court precedent recognizes that confrontation is a trial right. See 2009 UT 58, ¶ 10; *United States v. Campbell*, 743 F.3d 802, 807 (11th Cir. 2014) (“[T]he Supreme Court has never extended the reach of the Confrontation Clause beyond the confines of a trial.”); *Peterson*, 604 F.3d at 1169 (“[T]he United States Supreme Court has repeatedly stated that the right to confrontation is basically a trial right.”); *United States v. Andrus*, 775 F.2d 825, 836 (7th Cir. 1985) (“[T]he sixth amendment does not provide a confrontation right at a preliminary hearing.”); *United States v. Harris*, 458 F.2d 670, 677-78 (5th Cir. 1972) (“There is no Sixth Amendment requirement that [defendants] also be allowed to confront [the witness] at a preliminary hearing prior to trial.”)

Defendant incorrectly suggests that *Timmerman*’s partial reliance on *Gerstein v. Pugh*, 420 U.S. 103 (1975), undermines its holding that the Federal Confrontation Clause does not apply at preliminary hearings. Mot. at 5-6. The *Gerstein* court considered the standard that the Fourth Amendment requires to justify pretrial detention of a suspect

pending further proceedings. *See id.* at 111. The Court held that the applicable standard was “probable cause to believe the suspect has committed a crime” which is “the same [standard] as that for arrest.” *Id.* at 120 The Court further recognized that this probable cause standard “traditionally has been decided by a magistrate in a nonadversary proceeding on hearsay and written testimony.” *Id.*

It makes no difference that *Gerstein* contemplated a “nonadversary proceeding” where probable cause could be determined based on hearsay, *see id.*, while Utah allows for the determination of probable cause at an adversarial hearing where a defendant has a procedural right to cross-examine witnesses. This is so, as *Timmerman* explained, for three reasons. *See* 2009 UT 58, ¶ 12.

First, *Timmerman* explicitly rejected the notion that the existence of adversary procedures at a preliminary hearing somehow creates a federal constitutional right to confront all testimonial hearsay at that hearing. *See id.* As *Timmerman* observed, *Gerstein*’s recognition that some states determine probable cause at a more formal preliminary hearing—like the Alabama proceeding in *Coleman v. Alabama*, 399 U.S. 1 (1970), where a defendant has the right to counsel and a procedural right to confront witnesses—does not require that the Confrontation Clause must apply whenever adversarial procedures are provided at a preliminary hearing. *See Timmerman*, 2009 UT 58, ¶ 12. Rather, as the *Timmerman* court explained, “the [*Gerstein*] Court observed only that ‘adversary procedures are customarily employed’ in preliminary hearings; it did not go any further to *require* that such procedures be used.” *Id.* (quoting *Gerstein*, 420 U.S. at 120) (emphasis added).

Second, *Timmerman* recognized that there is no substantive difference between a probable-cause determination made at an informal non-adversarial proceeding like the *Gerstein* court analyzed, and the determination made in Utah's more formal and adversarial preliminary hearing. *See* 2009 UT 58, ¶ 12. "[O]ur recent case law establishes that there is no difference between the probable cause determinations in arraignments and in preliminary hearings." *Id.* (citing *State v. Virgin*, 2006 UT 29, ¶ 18, 137 P.3d 787 (probable cause standard at preliminary hearing is equivalent to probable cause to arrest); *State v. Clark*, 2001 UT 9, ¶ 16, 20 P.3d 300 (same)).

Third, *Timmerman* recognized that the Federal Constitution does not require the State to even hold a preliminary hearing. *See* 2009 UT 58, ¶ 12. "Preliminary hearings are pretrial procedures unique to and varied within the states; no such procedure is required by the United States Constitution." *Id.* In fact, "a state could eliminate preliminary hearings entirely and not infringe on federal constitutional rights." *Id.*

Indeed, as *Gerstein* recognized, an accused is not "entitled to judicial oversight or review of the decision to prosecute." 420 U.S. at 119. "[A] judicial hearing is not prerequisite to prosecution by information." *Id.*

Timmerman is controlling and establishes that hearsay is admissible at preliminary hearings because the Confrontation Clause does not apply. Defendant cites no authority extending the Confrontation Clause to preliminary hearings. Indeed, if the Confrontation Clause did apply, it would invalidate not only Utah's preliminary hearing procedure, but also similar procedures of the vast majority of other states and the federal government.

B. If the Federal Constitution barred the admission of hearsay at a preliminary hearing, then preliminary hearing procedures in the federal courts and 44 other states would also be unconstitutional.

The prosecution's ability to rely on hearsay at a preliminary hearing in the federal system and 44 other states belies Defendant's assertion that the Confrontation Clause bars the prosecution's use of hearsay at a preliminary hearing.

1. Hearsay is admissible to establish probable cause at a federal preliminary hearing.

The lack of any restriction on a federal prosecutor's ability to introduce and rely on hearsay at federal pretrial proceedings to determine probable cause to detain an accused and whether the prosecution has sufficient evidence to proceed to trial, further demonstrates the inapplicability of the Confrontation Clause at these types of hearings. A federal prosecutor can rely on hearsay at a preliminary hearing. If a defendant is charged by information and has not yet been indicted by a grand jury, he is entitled to a preliminary hearing "no later than 14 days after the initial appearance if the defendant is in custody." Fed. R. Crim. P. 5.1(a)(2), (c). At that hearing, the prosecution must demonstrate "probable cause to believe an offense has been committed and the defendant committed it." *Id.* 5.1(e).

The rules of evidence do not apply at federal preliminary hearings and hearsay is therefore admissible. Fed. R. Evid. 1101(d)(3). In fact, rule 5.1 of the Federal Rules of Evidence previously stated that "[t]he finding of probable cause may be based upon hearsay evidence in whole or in part." *See* Fed. R. Evid. 5.1 advisory committee's notes (2002 amendment). That language was removed in 2002, but only because "[f]ederal law is now clear on that proposition." *Id.* As the advisory committee explained, it "did not intend to

make any substantive changes in practice by deleting the reference to hearsay evidence.”
Id.

As in Utah, hearsay is admissible at a federal preliminary hearing to determine probable cause even though the hearing allows adversarial procedures. A defendant in a federal preliminary hearing has the right to counsel and “may cross-examine adverse witnesses and may introduce evidence.” Fed. R. Evid. 5.1(e); *Rothgery v. Gillespie Cnty., Tex.*, 554 U.S. 191, 198 (2008) (right to counsel attaches at defendant’s first appearance). Yet, as explained, the rules of evidence do not apply and the finding of probable cause “may be based upon hearsay evidence in whole or in part.” See Fed. R. Evid. 5.1 advisory committee’s notes (2002 amendment).

2. Hearsay is also admissible in federal grand jury proceedings.

Hearsay is also admissible in federal grand jury proceedings. Like federal preliminary hearings, the rules of evidence do not apply to grand jury proceedings and hearsay is therefore admissible. Fed. R. Evid. 1101(d)(2); *Costello v. United States*, 350 U.S. 359, 362–64 (1956). Grand jury proceedings are secret and “free from technical rules.” *Id.* at 362. “Indeed, indictments may be returned on hearsay, or for that matter, even on the knowledge of the grand jurors themselves.” *Pittsburgh Plate Glass Co. v. United States*, 360 U.S. 395, 400 (1959).

In fact, grand jury proceedings provide an accused even fewer protections than Utah’s preliminary hearing procedure. “It is axiomatic that the grand jury sits not to determine guilt or innocence, but to assess whether there is adequate basis for bringing a criminal charge.” *United States v. Williams*, 504 U.S. 36, 51 (1992). To make that

determination, “it has always been thought sufficient to hear only the prosecutor’s side.” *Id.* “As a consequence, neither in this country nor in England has the suspect under investigation by the grand jury ever been thought to have a right to testify or to have exculpatory evidence presented.” *Id.* at 52.

The fact that hearsay has long been admissible at both federal preliminary hearings and grand jury proceedings further undermines Defendant’s claim that the Confrontation Clause bars the prosecution from relying on hearsay at a Utah preliminary hearing. Those federal hearings serve the same purpose at Utah’s preliminary hearing—to determine whether the prosecution’s evidence establishes probable cause to require the defendant to stand trial. If it is unconstitutional to admit hearsay at a Utah preliminary hearing, then federal preliminary hearing and grand jury proceedings must also be unconstitutional. But as the Ninth Circuit recognized, it would be illogical to conclude that “the substitute for grand jury indictment,” a preliminary hearing “which is not required by the federal constitution, must contain greater protections than the grand jury procedures themselves.” *Peterson*, 604 F.3d at 1171.

3. 44 additional states allow hearsay at preliminary hearings and grand jury proceedings.

Like the federal system and Utah, 44 other states also allow hearsay at preliminary hearings and grand jury proceedings. *See* Chesa Boudin & Eric S. Fish, *Towards Pretrial Criminal Adjudication*, 66 B.C. L. Rev. 1135, 1169 & nn.212, 213, 217, Appx. B.¹ As with

¹ Three states, Arkansas, Indiana, and Maine, rely exclusively on grand juries and allow hearsay at those proceedings. *See id.* The forty-one other states that allow hearsay at preliminary hearings are Alabama, Alaska, Arizona, California, Colorado, Connecticut,

the federal preliminary hearing and grand jury system, these systems would likewise be unconstitutional if Defendant were correct that the Confrontation Clause barred hearsay at a preliminary hearing. But Defendant cites no authority holding that any of these 44 other state's preliminary hearing procedures violate the Confrontation Clause, or any other federal constitutional provision, because they allow the prosecution to rely on hearsay.

In sum, *Timmerman* holds that the Confrontation Clause does not apply at a preliminary hearing. The fact that preliminary hearing and grand jury proceedings in the federal system and 44 other states allows the prosecution to rely on hearsay confirms the correctness of that holding. Because *Timmerman* is controlling, this Court should deny Defendant's motion.

II. Defendant does not explain how another federal constitutional provision can indirectly require a right that the Confrontation Clause directly provides but does not require.

Because the Confrontation Clause does not apply, as Defendant eventually concedes, Mot. at 23, he instead attempts to rely on other constitutional provisions to create a right to confrontation at his preliminary hearing. But he makes no effort to explain how another constitutional provision can indirectly require a right to confrontation when the Confrontation Clause itself, which directly addresses that right, does not apply. In fact,

Delaware, Florida, Georgia, Hawaii, Idaho, Illinois, Iowa, Kansas, Kentucky, Louisiana, Maryland, Michigan, Minnesota, Mississippi, Missouri, Montana, Nebraska, Nevada, New Hampshire, New Jersey, New Mexico, New York, North Carolina, North Dakota, Oklahoma, Oregon, Pennsylvania, South Carolina, Tennessee, Vermont, Virginia, West Virginia, Washington, Wisconsin, and Wyoming. *See id.*

such an interpretation would conflict with the well-established rules of constitutional construction.

Interpreting a constitutional provision other than the Confrontation Clause to indirectly require a right to confrontation would create conflicting constitutional provisions and render the Confrontation Clause superfluous. But “[l]ike clauses in a statute, related clauses of the Constitution should be interpreted to avoid contradictions in the text or the rendering of some part of the text superfluous.” *Fla. Sugar Mktg. & Terminal Ass'n, Inc. v. United States*, 220 F.3d 1331, 1337 (Fed. Cir. 2000). “All of [the Federal Constitution’s] provisions ‘should be interpreted in a way that renders them compatible, not contradictory.’” *Hopkins v. Watson*, 108 F.4th 371, 378 (5th Cir. 2024) (quoting Antonin Scalia & Bryan A. Garner, *Reading Law: The Interpretation of Legal Texts* 180 (2012)); *see also Univ. of Utah v. Shurtleff*, 2006 UT 51, ¶ 17, 144 P.3d 1109 (“When interpreting the constitution, we strive to harmonize constitutional provisions with one another and with the meaning and function of the constitution as a whole.”).

Because constitutional provisions must be interpreted harmoniously and so as not to render other provision superfluous, a different constitutional provision cannot indirectly provide a substantive right that the Confrontation Clause directly addresses and does not require.

III. Even if another constitutional provision could somehow indirectly require a right to confrontation, Defendant has not demonstrated that any of those other provisions apply here.

A. The Fourteenth Amendment’s Due Process Clause cannot indirectly impose a right to confrontation.

The principle that one constitutional provision cannot indirectly provide a right that another provision directly provides is well-established with respect to the Fourteenth Amendment’s Due Process Clause. Federal courts have made clear that where another constitutional provision directly provides an particular right, a defendant cannot rely on the Fourteenth Amendment’s substantive or procedural due process principles as an indirect source of the right. “[W]hen a particular constitutional amendment ‘provides an explicit textual source of constitutional protection against a particular sort of government behavior, that Amendment, not the more generalized notion of substantive due process, must be the guide for analyzing these claims.’” *Simpson v. Cisneros*, 129 F.4th 901, 905 (5th Cir. 2025) (quoting *Albright v. Oliver*, 510 U.S. 266, 273 (1994)). “The Supreme Court has ‘always been reluctant to expand the concept of substantive due process.’” *Huff v. Reeves*, 996 F.3d 1082, 1091 (10th Cir. 2021) (quoting *County of Sacramento v. Lewis*, 523 U.S. 833, 842 (1998)); see also *Brown v. Weis*, 871 P.2d 552, 566 n.22 (Utah Ct. App. 1994) (“In construing a state constitution containing its own rather complete ‘bill of rights,’ it is wholly unnecessary to view a due process guaranty as connoting other rights when those rights are explicitly set forth in the same document.”).

Courts have extended this same reasoning to procedural due process claims. See *Becker v. Kroll*, 494 F.3d 904, 918–19 (10th Cir. 2007) (“[A]lthough the plaintiff in

Albright did not raise a procedural due process claim ... we find *Albright's* reasoning regarding substantive due process equally persuasive with regard to the Fourteenth Amendment's procedural component."); *Pino v. Higgs*, 75 F.3d 1461, 469 (10th Cir.1996) (same). Defendant therefore cannot rely on the Fourteenth Amendment to supply a right to confrontation that the Sixth Amendment's Confrontation Clause does not.

This same principle should apply to other constitutional provisions that Defendant attempts to rely on, like the Sixth Amendment right to counsel, the Eighth Amendment's Cruel and Unusual Punishment Clause, and the Fourteenth Amendment's Equal Protection Clause. As with the Due Process clause, if these additional provisions could indirectly provide a right that the Confrontation Clause directly provides but does not require, then that interpretation would render the Confrontation Clause superfluous. It would also render the different provisions in conflict, rather than in harmony. These additional federal constitutional provisions therefore cannot provide a right that the Confrontation Clause does not.

B. Even if Defendant could rely separately on the Due Process Clause, confrontation is not required because of the limited nature of a preliminary hearing.

If Defendant could rely on the Due Process Clause here, it would not require full confrontation rights. Due process "is not a technical conception with a fixed content unrelated to time, place, and circumstances; it is flexible and requires such procedural protections as the particular situation demands." *In re Baby Girl T.*, 2012 UT 78, ¶ 16, 298 P.3d 1251.

Given the extremely limited nature of a preliminary hearing, due process does not demand a right to confrontation at that hearing and the corresponding ability to prevent the admission of hearsay. The “function” of a preliminary hearing “is limited to determining whether probable cause exists.” Utah Const. art. 1, § 12. It is not a discovery device. *See State v. Lopez*, 2020 UT 61, ¶ 44, 474 P.3d 949. The prosecution’s burden is “light,” and requires only “evidence to support a reasonable belief that an offense has been committed and that the defendant committed it.” *Id.* at ¶ 46 (cleaned up).

Despite this very limited purpose of a preliminary hearing, a defendant is nevertheless entitled to counsel and to cross-examine any witness that the prosecution calls at the hearing. *See State v. Montes*, 2019 UT App 74, ¶ 38, 442 P.3d 1247. A defendant also has the right to call witnesses, to testify himself, and to argue that the prosecution’s evidence is insufficient. *See Utah R. Crim. P. 7B*. Defendant has not shown why these procedural protections are inadequate to satisfy due process given the limited nature of a preliminary hearing.

In fact, the Wisconsin Supreme Court rejected a similar due process claim in *State v. O’Brien*, 850 N.W.2d 8, 20-21 (Wis. 2014). Relying on *Gerstein*, the *O’Brien* court held that due process does not prevent the prosecution from relying on hearsay at a preliminary hearing because “[t]he United States Supreme Court has determined that informal proceedings are sufficient for probable cause determinations.” *Id.* at 20 (citing *Gerstein*, 420 U.S. at 121). Given the limited scope of a Wisconsin preliminary hearing, which, like Utah’s proceedings, is limited “to determining whether there is probable cause to believe

that a defendant committed a felony,” the admission of hearsay evidence “does not violate due process rights.” *Id.* at 20-21.

Likewise, as the Ninth Circuit succinctly explained, “[i]f the phrase ‘due process of law’ in the Fifth Amendment does not prohibit the use of hearsay in grand jury proceedings, then the same phrase in the Fourteenth Amendment cannot be read to prohibit the use of hearsay evidence at a preliminary hearing.” *Peterson v. California*, 604 F.3d 1166, 1171 (9th Cir. 2010).

C. Rule 1102 does not create a mandatory presumption that violates the Due Process Clause.

Nor does Rule 1102 create a mandatory presumption that violates due process. Defendant erroneously conflates admissibility and credibility in arguing otherwise. Mot. at 19. He mistakenly contends that merely deeming evidence to be *admissible* creates a mandatory presumption that the evidence is *credible*. *Id.* But Defendant’s premise is demonstrably false.

The fact that a witness’s testimony is admissible does not require a factfinder to find that testimony credible. Factfinders routinely reject admissible testimony as incredible. The ultimate determination of whether evidence is credible always rests with the factfinder.

This is true even at preliminary hearings where hearsay is admissible. *See State v. Dreesbeke*, 2010 UT App 275, ¶ 17, 241 P.3d 772 (“[M]agistrates may make limited credibility determinations in preliminary hearings.”). A credibility determination, even if limited, will always be based on an evaluation of already admitted evidence. A rule that

deems certain evidence admissible therefore does not mandate a finding that the evidence is also credible.

Moreover, mandatory presumptions are improper only when they pertain to ultimate issues that a factfinder must determine, not merely to the admissibility of certain evidence. *See Roosevelt City v. Nebeker*, 815 P.2d 738, 739-40 (Utah App. 1991). Thus, in *Nebeker*, a statute that permitted the admission of the results of a motorist's breath test as presumptively valid did not create an improper mandatory presumption because the presumption applied only to the admissibility of evidence. *See id.* It did not shift the burden of proof on any element of a crime. *See id.*

Likewise, Rule 1102 deals only with the admissibility of certain hearsay evidence. *See Utah R. Evid. 1102.* It leaves any limited credibility determinations that a magistrate can make entirely to the magistrate. And more importantly, it also leaves to the magistrate the ultimate decision of whether the admissible evidence demonstrates probable cause. *Nebeker* expressly authorizes presumptions of admissibility. *See* 815 P.2d at 739-40.

Indeed, if Defendant were correct that presumptions of admissibility are improper, then any number of evidentiary rules would be unconstitutional. For example, rules 803 and 804 of both the federal and state rules of evidence deem several categories of hearsay evidence to be admissible despite the general rule prohibiting hearsay. *See Fed. R. Evid. 803, 804; Utah R. Evid. 803, 804.* Rule 609 likewise makes a witness's prior felony conviction admissible as impeachment. *See Fed. R. Evid. 609; Utah R. Evid. 609.* The existence of these evidentiary rules demonstrates Defendant's flawed logic in accusing Rule 1102 of creating an improper mandatory presumption.

D. The Sixth Amendment’s right to counsel cannot indirectly create a right to confrontation at a preliminary hearing.

Defendant likewise fails to show that his Sixth Amendment right to counsel at a preliminary hearing somehow creates an indirect right to confrontation. Defendant cites no authority for the proposition that the right to counsel at a particular hearing mandates that counsel “must have available and utilize all the necessary tools of effective advocacy, including the right to cross examine any hearsay declarants.” Mot. at 7.

In fact, Defendant’s contention is demonstrably false. Although a defendant has the right to counsel at sentencing, *see State v. Cabrera*, 2007 UT App 194, ¶ 11, 163 P.3d 707, the rules of evidence do not apply and reliable hearsay is admissible, *see State v. Robinson*, 2018 UT App 227, ¶ 27, 438 P.3d 35 (““The rules of evidence in general, and the rules on hearsay exclusions in particular, are inapplicable in sentencing proceedings.”) (quoting *State v. Sanwick*, 713 P.2d 707, 709 (Utah 1986)); *see also* Utah R. Evid. 1101(c) (providing that the Utah Rules of Evidence do not apply at sentencing).

Moreover, the right to counsel cannot create any additional substantive right, because the *Strickland* standard for gauging counsel’s effectiveness is incompatible with that notion. The right to counsel requires only that counsel’s performance be objectively reasonable “under the circumstances” that counsel faced at the time. *Strickland v. Washington*, 466 U.S. 668, 689 (1984); *State v. Carter*, 2023 UT 18, ¶ 46, 535 P.3d 819 (“[W]e look at what the record tells us about what the world looked like when Carter’s counsel forwent the directed verdict motion.”). “A fair assessment of attorney performance requires that every effort be made to eliminate the distorting effects of hindsight, to

reconstruct the circumstances of counsel's challenged conduct, and to evaluate the conduct from *counsel's perspective at the time.*" *Strickland*, 466 U.S. at 689 (emphasis added). *Strickland* is satisfied so long as counsel performed reasonably under the circumstances he faced. *See id.* It does not a mechanism to change those circumstances.

Because the Sixth Amendment right to counsel depends on the circumstances of counsel's conduct at the time, "garden-variety applications of the test in *Strickland* ... for assessing claims of ineffective assistance of counsel do not produce new rules" of criminal procedure. *Chaidez v. United States*, 568 U.S. 342, 348 (2013) (refusing to apply retroactively the new rule in *Padilla v. Kentucky*, 559 U.S. 356 (2010)). A finding that counsel's performance was deficient because counsel should have acted differently cannot create a new rule of criminal procedure related to the action that counsel should have taken. *See id.* Again, the Sixth Amendment requires only that counsel perform reasonably under the existing circumstances. *See Strickland*, 466 U.S. at 689.

For these reasons, the Wisconsin Supreme Court rejected a claim that a defendant's right to counsel at a preliminary hearing precludes the admission of hearsay. *See State v. O'Brien*, 850 N.W.2d 8, 19-20 (Wis. 2014). "[T]he admission of hearsay at a preliminary hearing does not infringe on defendants' right to assistance of counsel," because "the constitution does not require that counsel be allowed to play the same role at a preliminary examination as counsel at trial." *Id.* at 19 (cleaned up).

Moreover, the cases that Defendant relies on regarding counsel's effectiveness in cross-examining witnesses all address cross-examination at *trial*. *See Mot.* at 8-10 & n.1. Those cases do not support the contention that the right to counsel at a *preliminary hearing*

requires counsel to be able to cross-examine all hearsay declarants at that hearing. Defendant therefore provides no authority to support his claim that his Sixth Amendment right to counsel can create a right to confrontation that the Confrontation Clause does not.

E. The Fourteenth Amendment's Equal Protection clause does not indirectly create a right to confrontation at a preliminary hearing.

Defendant also mistakenly asserts that the right to confrontation at parole revocation hearings, recognized in *Morrissey v. Brewer*, 408 U.S. 471 (1972), establishes an indirect right to confrontation at preliminary hearings under the Equal Protection Clause. Mot. at 11-14. The prosecution is not entirely barred from admitting hearsay at parole revocation hearing. Rather, a court may admit hearsay at that hearing if it finds good cause for doing so. *See Morrissey*, 408 U.S. at 489. “The purpose of [this] good cause requirement is to limit the use of unreliable evidence at revocation hearings.” *State v. Tate*, 1999 UT App 302, ¶ 11, 989 P.2d 73 (citing *Egerstaffer v. Israel*, 726 F.2d 1231, 1234 (7th Cir.1984)). But only reliable hearsay is admissible at a preliminary hearing. *See Utah Const. art. 1, § 12*. Because reliable hearsay is admissible at both parole revocation hearings and preliminary hearings, Defendant fails to demonstrate any equal protection violation.

In any event, Defendant's argument is inadequately briefed. Mere citation to authority without “development of that authority and reasoned analysis based on that authority” is inadequate to present an argument for decision. *State v. Thomas*, 961 P.2d 299, 305 (Utah 1998).

The extent of Defendant's equal protection argument is to remark, as part of his procedural due process argument, that his inability to confront hearsay declarants at his

preliminary hearing also denies him equal protection. Mot. at 10-15. But he makes no effort to explain how a parolee facing the reimposition of the remainder of his prison sentence is similarly situated to a pretrial detainee, who will not be subject to a prison sentence without first being convicted at a trial with full confrontation rights. Defendant completely omits this analysis even though “the initial inquiry in analyzing an equal protection claim is to determine whether a person is similarly situated to those persons who allegedly received favorable treatment.” *United States v. Whiton*, 48 F.3d 356, 358 (8th Cir. 1995). Defendant therefore fails to carry his burden of persuasion on his equal protection claim.²

F. The Eighth Amendment’s Cruel and Unusual Punishment Clause does not indirectly create a right to confrontation at a preliminary hearing.

As with his other claims, Defendant’s reliance on the Eighth Amendment’s Cruel and Unusual Punishment Clause to create an indirect confrontation right at preliminary hearing fails because he cites no authority establishing that the heightened reliability required to impose a death sentence applies to pretrial proceedings. Mot. at 19-21.

The possible punishment Defendant faces if convicted of aggravated murder has no relevance to a preliminary hearing. While the Eighth Amendment imposes a “heightened reliability” requirement in capital cases, that requirement applies “in the determination [of]

² And it is now too late for Defendant to attempt to provide the missing analysis. An opportunity to file a reply brief “is not a license to gap-fill missing arguments.... The timely presentation of arguments is essential to providing an opposing party with a fair opportunity to respond.” *Monticello Wind Farm, LLC v. Pub. Serv. Comm’n of Utah*, 2019 UT 43, ¶ 80, 449 P.3d 128; *see also State v. Kruger*, 2000 UT 60, ¶ 21, 6 P.3d 1116 (responding party’s observation that moving party failed to raise an argument does “not constitute a ‘new matter’ entitling [opposing party] to brief the issue in his reply brief”).

whether the death penalty *is appropriate* in a particular case.” *Sumner v. Shuman*, 483 U.S. 66, 72 (1987) (emphasis added).

Defendant cites no authority establishing that this heightened reliability standard extends to every decision and proceeding in a capital case, including pretrial determinations and hearings. Mot. at 19-21. Rather, Defendant’s authority addresses, for the most part, the imposition or execution of a death sentence, *see Ford v. Wainwright*, 477 U.S. 399, 401-05 (1986) (addressing whether an insane person could be executed); *Deck v. Missouri*, 544 U.S. 622, 632 (2005) (considering whether a defendant could be forced to appear at a capital sentencing hearing in shackles); *Gardner v. Florida*, 430 U.S. 349, 358 (1977) (analyzing evidence on which a capital sentence was based); *Turner v. Murray*, 476 U.S. 28 (1986) (considering how jury selection procedures would affect “a capital sentencing jury”).

Granted, one of Defendant’s cases, *Beck v. Alabama*, 447 U.S. 625, 627 (1980), does not address the imposition or execution of a death sentence. It analyzes whether the jury must be allowed to consider a lesser-included offense at the guilt phase of a capital trial. *See id.* But *Beck*’s holding that jurors must be instructed on lesser-included offenses was based on due process, not a conclusion that the Eighth Amendment’s heightened reliability standard required that result. *See id.* at 638 n.14 (“We need not and do not decide whether the Due Process Clause would require the giving of such instructions in a noncapital case.”). Defendant therefore cites no authority that would extend the Eighth Amendment’s heightened reliability standards for imposing the death penalty to a pretrial proceeding like a preliminary hearing. Mot. at 19-21.

Moreover, even if the admission of reliable hearsay at Defendant's preliminary hearing somehow decreased the reliability of the probable cause determination there, Defendant still would be eligible for the death penalty only if he were later convicted beyond a reasonable doubt at the guilt phase of his trial where the Confrontation Clause would apply. That conviction beyond a reasonable doubt would cure any defect in the preliminary hearing proceeding. *See Thomas v. State*, 2002 UT 128, ¶ 7, 63 P.3d 672 (“[A]n error at the preliminary stage is cured if the defendant is later convicted beyond a reasonable doubt.”) (cleaned up). The Eighth Amendment has no application to this pretrial hearing.

G. Separation of powers principles do not indirectly create a right to confrontation

Finally, Defendant fails to demonstrate that separation of powers principles can prohibit the legislature from classifying certain evidence as reliable hearsay. Mot. at 21-23. Defendant makes no argument that the Federal Constitution imposes any particular separation powers principles on the states. *See id.*

Nor could he. The Tenth Amendment reserves for the States any powers not expressly “delegated to the United States by the Constitution, nor prohibited by it to the States.” U.S. Const. amend. X. Because no Federal Constitutional provision requires states to follow any particular separation of powers principles, Utah is free to define and divide power among its governmental branches as it sees fit.

The Utah Constitution expressly allows for the admission at a preliminary hearing “of reliable hearsay evidence as defined *by statute or rule.*” Utah Const. art. I, § 12

(emphasis added). This provision therefore expressly allows the legislature to define categories of reliable hearsay. Moreover, as explained, even when reliable hearsay is admitted at a preliminary hearing, the determination of whether the admissible evidence demonstrates probable cause rests solely with the magistrate. See Utah R. Crim. P. 7B. Contrary to Defendant's representation, such a system creates no separation of powers issue. See *Whitman v. Superior Court*, 820 P.2d 262 (Cal. 1991) (discerning no separation of powers violation where magistrate retained full authority "to determine whether the proffered evidence demonstrates probable cause"). Defendant therefore fails to demonstrate that Rule 1102 violates any separation of powers principle.

In sum, Defendant cannot rely on a separate constitutional provision to require a right to confrontation that the Confrontation Clause itself does not provide. But even if he could, he has not demonstrated that any of the various provisions he cites indirectly require the right to confrontation at a preliminary hearing.

CONCLUSION

For the foregoing reasons, the Court should deny Defendant's motion and allow the State to introduce reliable hearsay at the preliminary hearing, consistent with Utah's practice for more than thirty years, as well as the practice in the federal courts and 44 other states.

Dated May 27, 2026.

Utah County Attorney's Office

s/ Christopher D. Ballard
Christopher D. Ballard
Deputy Utah County Attorney

CERTIFICATE OF SERVICE

I certify that on May 27, 2026, I filed the foregoing **OPPOSITION TO DEFENDANT'S MOTION IN LIMINE TO PRECLUDE THE UTILIZATION OF ARTICLE I, § 12 OF THE UTAH CONSTITUTION AND RULE 1102 OF THE UTAH RULES OF EVIDENCE TO SANCTION THE ADMISSIBILITY OF HEARSAY EVIDENCE TO ESTABLISH PROBABLE CAUSE AT THE PRELIMINARY HEARING** through the court's electronic filing system, which served a copy on all counsel of record.

s/ Christopher D. Ballard
Christopher D. Ballard